FILED October 16, 2025 12:38 PM Appellate Court Records

IN THE COURT OF APPEALS
FOR THE STATE OF OREGON

Ka'ila Farrell-Smith et al., Plaintiffs-Appellants, and Rogue Climate and 350Eug ("350 Eugene"), Intervenor Plaintiffs-Appellants, v. Oregon Department of Justice; Dan Rayfield, in his official capacity as the Attorney General of the State of Oregon; and Michael Slauson, in his official capacity as Chief Counsel of the Criminal Justice Division of the Oregon Department of Justice, Defendants-Respondents.	Marion County Circuit Court Case No. 21CV47809 CA A187251 (Control) CA A187250

BRIEF OF *AMICI CURIAE* AMERICAN CIVIL LIBERTIES UNION OF OREGON & BRENNAN CENTER FOR JUSTICE AT NEW YORK UNIVERSITY SCHOOL OF LAW IN SUPPORT OF APPELLANTS

Appeal from the Judgment of the Circuit Court for Marion County;

Honorable Lindsay R. Partridge, Judge

(Counsel listed on next page)

October 2025

Tim Cunningham, OSB #100906
Davis Wright Tremaine LLP
560 SW 10th Ave, Suite 700
Portland, OR 97205
timcunningham@dwt.com
Tel: (503) 241-2300

Barry Friedman, pro hac vice
Aaron Scherzer, pro hac vice
Carly Margolis, pro hac vice
The Policing Project Washington Square Legal Services, Inc.
40 Washington Square South
New York, NY 10012
barry.friedman@nyu.edu
aaron.scherzer@nyu.edu
carly.margolis@nyu.edu
Tel: (212) 992-6950

Jeffrey Rosenthal, pro hac vice
Patrick Swiber, pro hac vice
Cleary Gottlieb Steen & Hamilton LLP
One Liberty Plaza
New York, NY 10006
jrosenthal@cgsh.com
pswiber@cgsh.com
Tel: (212) 225-2000

Attorneys for Appellants Farrell-Smith, Jackson, Westover and Eatherington

Denise G. Fjordbeck, OSB #822578
Oregon Department of Justice
1162 Court St., NE
Salem, OR 97301
denise.fjordbeck@doj.oregon.gov
Tel: (503) 378-4402

Attorney for Respondents

Marianne G. Dugan, OSB #932563
Civil Liberties Defense Center
1711 Willamette St, Ste 301 #359
Eugene, OR 97401
mdugan@cldc.org
Tel: (541) 687-9180

Attorney for Appellants Rogue Climate and 350 EUG

Colin Hunter, OSB #131161
Bradley Bernstein Sands LLP
1211 NW Glisan St., Suite 204
Portland, OR 97209
(971) 337-0190
chunter@bradleybernstein.com

Kelly Simon, OSB #154213
ACLU Foundation of Oregon, Inc.
PO Box 40585
Portland, OR 97240
(503) 227-3186
ksimon@aclu-or.org

Attorneys for *Amici Curiae the ACLU of Oregon and Brennan Center for Justice at NYU Law*

TABLE OF CONTENTS

STATEMENT OF INTEREST OF *AMICI* 1

INTRODUCTION AND SUMMARY OF ARGUMENT 3

ARGUMENT 7

I. FUSION CENTERS—AN UNREGULATED, NETWORKED DOMESTIC INTELLIGENCE ENTERPRISE 7

A. Before Fusion Centers: Intelligence Abuse and Fleeting Reforms 12

B. TITAN and Other Fusion Centers Lack Guardrails, which Undermines Established Legal Protections and the Public Interest 20

C. A Lack of Authorization and Regulation Allow Private Sector Participation in TITAN that Undermines Rights, Privacy, and Law Enforcement Integrity 24

D. Lacking Meaningful Guardrails and Transparency, Fusion Centers like TITAN Monitor Political Speech and Activity 26

CONCLUSION 31

TABLE OF AUTHORITIES

Cases

See Weyerhaeuser Co. v. Klamath County, Or., 151 F.3d 996 (9th Cir. 1998) 25

Statutes

1981 Or. Laws. ch. 905 § 8 17

O.R.S. § 192.345(2) 26

ORS § 181A.250 .....6, 17

Pub. L. No. 108-458, § 1011, 118 Stat. 3638 (2004) 19

Other Authorities

"Don't Let Police Be Used For Political Spying Or As Federal INS Agents," ACLU of Oregon (Fall 2002) 13, 14, 18

"Office of Intelligence and Analysis Operations in Portland," Dep't of Homeland Security Office of Inspector General (Apr. 20, 2021) 29

Am. Civil Liberties Union, "ACLU EYE on the FBI: Documents Reveal Lack of Privacy Safeguards and Guidance in Government's "Suspicious Activity Report" Systems," (Oct. 30, 2013).....19

Andrew Selsky, *US gathered intel on Oregon protestors, report shows*, AP News (Oct. 28, 2022).....29

Andy Greenberg, *A DHS Data Hub Exposed Sensitive Intel to Thousands of Unauthorized Users*, Wired (Sep. 16, 2025) 11

Baseline Capabilities for State and Major Urban Area Fusion Centers: A Supplement to Fusion Center Guidelines 4

Brennan Center, "Coalition Calls for Congressional Action on DHS's Politicized Intelligence Targeting Activists in Atlanta, Georgia" (Dec. 15, 2023) 12

Caroline Haskins, *This Is Palantir's Top-Secret User Manual for Cops*, Vice (July 12, 2019).....23

Carolyn Walker, "Investigation Report," Am. Civil Liberties Union of Oregon (Apr. 6, 2016) 27, 28

Chris Cushing et al., "MIAC [Maine Information and Analysis Center] Shadow Report: Reporting on MIAC Auditing Processes Supplemental to the DPS Report," (April 1, 2022) 23

Cong. Research Serv., *Fusion Centers: Issues and Options for Congress* (Jan. 18, 2008)..... 4, 8, 10

Cong. Research Serv., *Intelligence Information: Need-to-Know vs. Need-to-Share* (June 6, 2011) 19

Cong. Research Serv., *The Freedom of Information Act (FOIA): A Legal Overview* (June 27, 2024) 15

David Carter, *Law Enforcement Intelligence: A Guide for State, Local, and Tribal Law Enforcement Agencies*, U.S. Dep't of Justice 149 (Vol. 2, Jan. 2009) 16

Dep't of Homeland Sec., 2018 National Network of Fusion Centers Final Report (2018).....4, 8

Dep't of Homeland Security, "Homeland Security Information Network", 2020 Annual Report: Delivering Mission Success (June 21, 2021) 22

DHS Office of Inspector General, Intelligence Community Office of Inspector General, and DOJ Office of Inspector General, Review of Domestic Sharing of Counterterrorism Information, March 2017,.....4

Digital Dragnets: Examining the Government's Access to Your Personal Data, Hearing Before the H. Comm. on the Judiciary, 117th Cong., Statement of Elizabeth Goiten, (July 19, 2022).....23

Digital Dragnets: Examining the Government's Access to Your Personal Data, Hearing Before the H. Comm. on the Judiciary, 117th Cong., Statement of Sarah Lamdan, (July 19, 2022).....22

Emile Ayoub and Elizabeth Goitein, "Closing the Data Broker Loophole," Brennan Center for Justice (Feb. 13,2024).....2

Emily Berman, "Domestic Intelligence: New Powers, New Risks," Brennan Center for Justice (2021).....18

Eric Rosenbach and Aki Peritz, "Congressional Oversight of the Intelligence Community," Belfer Center for Science and International Affairs, Harvard Kennedy School (July 2009).....15

Erin M. Prest, "Privacy Impact Assessment for the Law Enforcement Online (LEO) Services," Dep't of Justice, (July 16, 2019).....21

Erin M. Prest, "Privacy Impact Assessment for the National Data Exchange (N-DEx) System," Dep't of Justice (Aug. 29, 2018).....22

Frank J. Donner, *Protectors of Privilege: Red Squads and Police Repression in Urban America* (University of California Press 1990).....7, 13

Government Accountability Office, *Federal Efforts Are Helping to Alleviate Some Challenges Encountered by State and Local Information Fusion Centers* (Oct. 30, 2007).....20

Isiah Holmes, *Analysis of Flock use by Wisconsin cops reveals trends, raises questions*, Wisconsin Examiner (Aug. 6, 2025).....23

Jason Wilson, *Officials Baselessly Linked 'Antifa' to Arson Before Wildfires, Documents Show*, The Guardian (Sep. 19, 2020).....30

Joseph Cox, *Congress Launches Investigation into Flock After 404 Media Reporting*, 404 Media (Aug. 8, 2025).....9

Joshua Rhett Miller, *Fusion Centers' Expand Criteria to Identify Militia Members*, Fox News, (Dec. 24, 2015).....29

Justin Doubleday, *DHS Plans for Skinny Staffs at Civil Liberties Oversight Offices*, Federal News Network (May 26, 2025) 5

Kristian Williams, Our Enemies in Blue: Police and Power in America, 198-234, (AK Press 2015) 7, 13

Lauren Fichten and Alex Clark, *When license plate readers get it wrong*, CBS News (July 24, 2025).....9

Mara Hvistendahl, *Austin Fusion Center Spied on Nonpolitical Cultural Events*, The Intercept (Nov. 30, 2020) 30

Marilyn Peterson, *Intelligence-Led Policing*, Bureau of Justice Assistance (Sep. 2005).....4

Mary Ellen Callahan, "Privacy Impact Assessment for the HSIN 3.0 Shared Spaces: On the Sensitive but Unclassified Network," Dep't of Homeland Security (July 25, 2012) 21

Medford Police Department, "Medford PD Policy Manual," Section 600.5, "Collection or Maintenance of Specific Information 18

Micah Lee, *Hack of 251 Law Enforcement Websites Exposes Personal Data of 700,000 Cops*, The Intercept, June 15, 2020 11

Micah Lee, *How Northern California's Police Intelligence Center tracked Protests*, The Intercept (Aug. 17, 2020) 29

Michael German, et. al, "Ending Fusion Center Abuses," Brennan Center for Justice (Dec. 15, 2022) 2, 12

Michael Price, "National Security and Local Police," Brennan Center for Justice (Dec. 10, 2013) 2

Mike Tipping, *Data Breach Exposes Activities of Maine's Secretive Police Intelligence Agency*, *Beacon (Maine People's Alliance* (June 26, 2020).....30

Nathan Bernard and Caleb Horton, *Teenager or Terrorist?*, Mainer, July 29, 2020 30

National Security Presidential Memorandum 7, *Countering Domestic Terrorism and Organized Political Violence* (Sept. 25, 2025) 27

Nusrat Choudhury, "Where's the Suspicion in Government's 'Suspicious Activity' Reports?," ACLU (Oct. 30, 2013 19

Rachel Levinson-Waldman and José Guillermo Gutiérrez, "Overdue Scrutiny for Watch Listing and Risk Prediction," Brennan Center for Justice (Oct. 19, 2023) 29

Rachel Levinson-Waldman and José Guillermo Gutiérrez, *Study Reveals Inadequacy of Police Departments' Social Media Surveillance Policies*, Brennan Center for Justice (Feb. 7, 2024) 9

Rachel Levinson-Waldman, "Principles for Social Media Use by Law Enforcement," Brennan Center for Justice (Feb. 7, 2024) 2

Robert Mandel, *Global Data Shock: Strategic Ambiguity, Deception, and Surprise in an Age of Information Overload* (Stanford, CA: Stanford University Press, 2019) 22

Ryan Mac, Caroline Haskins, and Logan McDonald, *Clearview's Facial Recognition App Has Been Used by the Justice Department, ICE, Macy's, Walmart, and the NBA*, BuzzFeed News (Feb. 27, 2020) 23

Sam Levin, *How California Police Chased a Nonexistent 'Antifa Bus*,' The Guardian (Aug. 23, 2021) 31

Spencer Reynolds and Faiza Patel, "A New Vision for Domestic Intelligence," Brennan Center for Justice (Mar. 30, 2023) 2

Spencer Reynolds and José Guillermo Gutiérrez, "Internal Atlanta Police Records Reveal Monitoring of 'Cop City' Opponents' Political Activity," Brennan Center for Justice (July 30, 2024) 2

Spencer Reynolds, "DHS's Newest Target: Atlanta's 'Cop City' Activists," Just Security (June 13, 2023) 12

Spencer Reynolds, "How DHS Laid the Groundwork for More Intelligence Abuse," Brennan Center for Justice (March 5, 2025) 2

Spencer Reynolds, "Incoming DHS Intelligence Lead Promotes Unlawful Activities," Just Security (July 3, 2025) 2

Spencer Reynolds, Alia Shahzad, "Holding Homeland Security Accountable," Brennan Center for Justice (2023) 5

Stephen Mayhew, "Fusion Intelligence Center Implements Tygart Facial Recognition Software," BiometricUpdate.com (Oct. 16, 2014) 23

Tara Seals, "Threat Intelligence Strategies Suffer from Data Overload," Info Security Group 22

The 9/11 Commission Report: Final Report of the National Commission on Terrorist Attacks Upon the United States, Nat'l Comm'n on Terrorist Attacks Upon the United States (2004) 19

Thomas Brewster, *ICE Just Spent Millions On Surveillance Tech Banned By Facebook*, Forbes (Sep. 18, 2025) 29

Thomas Nolan, *The Trouble with So-Called "Gang Databases": No Refuge in the "Sanctuary"* Am. Const. Soc'y (June 27, 2018) 8

Timothy Pratt, *Judge drops domestic terrorism charges against Atlanta 'Cop City' protester*, The Guardian (Aug. 15, 2025) 12

U.S. Dep't of Homeland Sec., Fusion Center Foundational Guidance 3

U.S. Dep't of Justice Inspector General, *The Federal Bureau of Investigation's Compliance with the Attorney General's Investigative Guidelines* (2005) 15

U.S. Dep't of Justice, "The Foreign Intelligence Surveillance Act of 1978 (FISA), ...15

U.S. Dep't of Justice, *28 CFR Part 23: A Guide to Criminal Intelligence Policies*, (2015) 16

U.S. Dep't of Justice, Baseline Capabilities for State and Major Urban Area Fusion Centers: A Supplement to Fusion Center Guidelines (Sept. 2008) 4

U.S. Dep't of Justice, *Fusion Center Guidelines: Developing and Sharing Information and Intelligence in a New Era* (Aug. 2006) 6, 9

U.S. Senate Permanent Subcomm. on Investigations, *Federal Support for and involvement in State and Local Fusion Centers* (Oct. 3, 2012) 8, 20

U.S. Senate Select Committee to Study Governmental Operations, Supplemental Detailed Staff Reports on Intelligence Activities and the Rights of Americans ("The Church Committee Report"), Book III (1976).....13

Will Parrish and Jason Wilson, *FBI and Police Monitoring Oregon Anti-Pipeline Activists*, The Guardian (Aug. 8, 2019),.....25

Will Parrish and Jason Wilson, *Revealed: Anti-Terror Center Helped Police Track Environmental Activists*, The Guardian (Oct. 2, 2019) 6, 10, 25

Regulations

28 C.F.R. § 23.20 16

Exec. Order No. 14085, *Designating Antifa as a Domestic Terrorist Organization*, 90 Fed. Reg. 12345 (Sept. 22, 2025).....27

Government Webpages

Dep't of Homeland Security, "IT Program Assessment: DHS — Homeland Secure Data Network (HSDN)," 22

Dep't of Homeland Security, "Recognize the Signs of Terrorism-Related Susicious Activity,".....18

Dep't of Homeland Security, "Reporting Suspicious Activity in Oregon," 18

Law Enforcement Information Exchange, "Introduction and Overview," 22

Naval Criminal Investigative Service, "LInX/D-Dex".....22

Office of Intelligence and Analysis, "Open Source Intelligence Report (OSIR)," DHS (June 2, 2020) 30

Oregon Dep't of Justice, *Oregon TITAN Fusion Center* 8

Oregon Dep't of Justice, *Oregon TITAN Fusion Center — Privacy Policy* (Mar. 2025) 6

Portland Police Bureau, Criminal Intelligence Unit, ...15

U.S. Dep't of Homeland Sec., Homeland Security Grant Program (HSGP) 3

U.S. Dep't of Homeland Security, *Annual Fusion Center Assessment and Gap Mitigation Activities* (Jan. 30, 2024) 4

Journals

James Pinchot et al., *Data Privacy Issues In The Age Of Data Brokerage: An Exploratory Literature Review*, Issues in Information Systems 19(3) (2018) 9

Jeremy G. Carter et al., *Law Enforcement Fusion Centers: Cultivating an Information Sharing Environment While Safeguarding Privacy*, Journal of Police and Criminal Psychology 32 (2017) 20

Kathy Carbone, *A collection and its many relations and contexts*, 76:3 J. Documentation 753 (2020) 14

Kathy Carbone, *Surveillance to Art: "Flipping Around the Paranoia"*, J. Critical Library & Info. Stud. 2-4 (2018) 14

STATEMENT OF INTEREST OF *AMICI*

The American Civil Liberties Union of Oregon (ACLU of Oregon) is a statewide non-profit and non-partisan organization with over 48,000 members and supporters in Oregon. The ACLU of Oregon engages in litigation in order to advocate for a more just, equitable, and caring democracy in Oregon. As part of its litigation work, the ACLU of Oregon seeks to defend and advance civil liberties that are impacted by law enforcement surveillance and investigatory tactics, and seeks accountability for government intrusions upon our privacy, as well as our freedoms of expression and association. For example, the ACLU of Oregon currently represents plaintiffs before the Oregon Supreme Court and Jackson County Circuit Court who seek relief under ORS 181A.250. The ACLU of Oregon was also a key advocacy voice that supported the passage of this critical statutory protection of Oregonians' privacy and freedom.

The Brennan Center for Justice at New York University School of Law[1] is a nonpartisan law and policy institute committed to strengthening our institutions and processes of democracy. Its Liberty and National Security Program studies law

[1] This brief does not purport to convey the position of New York University School of Law. Further, no counsel for a party authored this brief in whole or in part, and no party or its counsel made a monetary contribution intended to fund its preparation or submission. No person, other than amici curiae, their members, or their counsel, contributed money intended to fund preparing or submitting the brief.

enforcement, counterterrorism, and intelligence initiatives and offers policy solutions to strengthen safety and mitigate risks to civil liberties. Through research, reporting, testimony, and public education, the Brennan Center is a leading national expert on fusion centers, domestic intelligence activities, private data brokers, the relationship between federal, state, and local law enforcement, and federal oversight of these activities.[2]

---

[2] *See, e.g.,* Spencer Reynolds, "Incoming DHS Intelligence Lead Promotes Unlawful Activities," Just Security (July 3, 2025), https://www.justsecurity.org/116094/dhs-intelligence-unlawful-activities/; Spencer Reynolds, "How DHS Laid the Groundwork for More Intelligence Abuse," Brennan Center for Justice (March 5, 2025), https://www.brennancenter.org/our-work/analysis-opinion/how-dhs-laid-groundwork-more-intelligence-abuse-0; Rachel Levinson-Waldman, "Principles for Social Media Use by Law Enforcement," Brennan Center for Justice (Feb. 7, 2024), https://www.brennancenter.org/our-work/research-reports/principles-social-media-use-law-enforcement; Spencer Reynolds and José Guillermo Gutiérrez, "Internal Atlanta Police Records Reveal Monitoring of 'Cop City' Opponents' Political Activity," Brennan Center for Justice (July 30, 2024), https://www.brennancenter.org/our-work/analysis-opinion/internal-atlanta-police-records-reveal-monitoring-cop-city-opponents; Emile Ayoub and Elizabeth Goitein, "Closing the Data Broker Loophole," Brennan Center for Justice (Feb. 13, 2024) https://www.brennancenter.org/our-work/research-reports/closing-data-broker-loophole; Spencer Reynolds and Faiza Patel, "A New Vision for Domestic Intelligence," Brennan Center for Justice (Mar. 30, 2023), https://www.brennancenter.org/our-work/policy-solutions/new-vision-domestic-intelligence; Michael German, et. al, "Ending Fusion Center Abuses," Brennan Center for Justice (Dec. 15, 2022), https://www.brennancenter.org/our-work/policy-solutions/ending-fusion-center-abuses; Michael Price, "National Security and Local Police," Brennan Center for Justice (Dec. 10, 2013), https://www.brennancenter.org/our-work/research-reports/national-security-and-local-police.

INTRODUCTION AND SUMMARY OF ARGUMENT

After the September 11, 2001 terrorist attacks, the United States Department of Justice (DOJ), Department of Homeland Security (DHS), and Federal Bureau of Investigation (FBI) built a national network of state-operated intelligence fusion centers by providing funding, personnel, foundational guidance, and access to sensitive federal law enforcement, military, and intelligence data systems.[3] This network functions as the largest domestic intelligence enterprise this nation has ever experienced. It operates under ambiguous authorities, with little transparency or independent oversight. Because of the intimately networked nature of fusion centers, each participant, including the Oregon Terrorism Information Threat Assessment Network Fusion Center (TITAN), has broad access to the information and resources of the others and is impacted by any shortcomings, abuses, and bad data in the network as a whole.

After forming this network, the federal government withdrew from meaningful oversight of its creation.[4] The federal government failed to ensure that

---

[3] U.S. Dep't of Homeland Sec., Fusion Center Foundational Guidance, https://www.dhs.gov/fusion-center-foundational-guidance (last visited Oct. 14, 2025).

[4] Few formal requirements exist for the use of federal resources by fusion centers. While DHS grants to fusion centers come with a series of expectations, almost all are mere checklists – assuring, for example, that privacy policies exist, but not how protective these policies are or how well they are executed in practice. *See* U.S. Dep't of Homeland Sec., Homeland Security Grant Program (HSGP), https://www.dhs.gov/homeland-security-grant-program-hsgp.

fusion centers operate lawfully and appropriately, instead putting the onus on state and local governments to properly authorize, manage, and oversee each of their respective fusion centers.[5] As is the case in Oregon, often they have not, creating a

(last visited Oct. 14, 2025). Inspectors General of the U.S. Department of Justice, DHS, and the Intelligence community have all complained that they have difficulty assessing how fusion centers use federal money. *See* DHS Office of Inspector General, Intelligence Community Office of Inspector General, and DOJ Office of Inspector General, Review of Domestic Sharing of Counterterrorism Information, March 2017, 44, https://www.oig.dhs.gov/sites/default/files/assets/2017/OIG-17-49-Mar17.pdf; Marilyn Peterson, *Intelligence-Led Policing*, Bureau of Justice Assistance (Sep. 2005).

[5] Cong. Research Serv., *Fusion Centers: Issues and Options for Congress*, 16 (Jan. 18, 2008) https://www.congress.gov/crs_external_products/RL/PDF/RL34070/RL34070.5.pdf; Baseline Capabilities for State and Major Urban Area Fusion Centers: A Supplement to Fusion Center Guidelines, 2 (Sept. 2008), https://ncric.ca.gov/wp-content/uploads/2021/10/Baseline-Capabilities-for-Fusion-Centers.pdf https://bja.ojp.gov/sites/g/files/xyckuh186/files/media/document/fusion_center_guidelines_law_enforcement.pdf; U.S. Dep't of Justice, Baseline Capabilities for State and Major Urban Area Fusion Centers: A Supplement to Fusion Center Guidelines, 2, (Sept. 2008), https://ncric.ca.gov/wp-content/uploads/2021/10/Baseline-Capabilities-for-Fusion-Centers.pdf. The extent of DHS's enforcement appears to be an annual audit, based on self-reported information, conducted by the DHS agency that works in fusion centers. But the audit focuses on whether policies have been implemented, without assessing their effectiveness or evaluating fusion center activities to ensure compliance with applicable laws, regulations, and policies. Dep't of Homeland Sec., 2018 National Network of Fusion Centers Final Report (hereinafter "2018 Fusion Centers Final Report"), 2-4 (2018), https://www.dhs.gov/sites/default/files/publications/2018_national_network_of_fusion_centers_final_report.pdf. The audit appears not designed primarily to serve an accountability role: its first goal is to "[c]ommunicate the fusion centers' value in contributing to national information sharing and homeland security outcomes," making clear that the purpose is to promote fusion centers rather than to critically evaluate them. U.S. Dep't of Homeland Security, *Annual Fusion Center Assessment and Gap Mitigation Activities* (Jan. 30, 2024), https://www.dhs.gov/annual-fusion-center-assessment-and-gap-mitigation-

regulatory vacuum that fosters abuse. Fusion centers have regularly produced flawed analyses, exploiting the lack of oversight and disparate, permissive authorities brought to the centers by the government agencies and private entities that participate in them. There, officers collect information about people engaged in First Amendment–protected and other noncriminal activities and distribute it widely throughout the network. Most fusion center activity is opaque, unseen by the public or even by policymakers.

This nationwide domestic intelligence enterprise has circumvented laws, regulations, and policies designed to limit the collection and dissemination of criminal intelligence, and undermined Americans' privacy, civil rights, and civil liberties. The collection and sharing of personal information at fusion centers goes far beyond what police department intelligence units typically conduct.

TITAN is no exception. By design, and according to its own privacy policy, TITAN traffics in sensitive, personally-identifiable information about people and

---

activities (last visited Oct. 14, 2025). Further, the DHS office that is supposed to train fusion center personnel on the protection of rights and liberties has recently been gutted, following a long history of being sidelined within DHS. Justin Doubleday, *DHS Plans for Skinny Staffs at Civil Liberties Oversight Offices*, Federal News Network (May 26, 2025), https://federalnewsnetwork.com/workforce/2025/05/dhs-plans-for-skinny-staffs-at-civil-liberties-oversight-offices/ (last visited Oct. 14, 2025); *see also* Spencer Reynolds, Alia Shahzad, "Holding Homeland Security Accountable," Brennan Center for Justice, (2023) https://www.brennancenter.org/our-work/policy-solutions/holding-homeland-security-accountable (providing a history of DHS's weak oversight structure).

groups not suspected of criminal activity.[6] And TITAN makes that information available to private industry officials who work in or closely with the agency, as when it collaborated closely with pipeline company Pembina to monitor environmental activists and provided extensive information to the company.[7] This effectively prioritizes the interests of industry over the interests of the public.

The practices of the Oregon TITAN fusion center, conducted in coordination with a national network of approximately 80 other state, local, and regional fusion centers, exceeds the authorities that the Oregon legislature granted to the state's Department of Justice. The practices also violate an Oregon statute prohibiting law enforcement agencies from collecting or maintaining information about a person or group based on religious, political, social, and associational activities when that person or group is not suspected of any criminal activity.[8]

---

[6] Oregon Dep't of Justice, *Oregon TITAN Fusion Center — Privacy Policy* (Mar. 2025), https://www.doj.state.or.us/wp-content/uploads/2025/03/OTFC-Privacy-Policy.pdf (last visited Oct. 14, 2025); *see also* U.S. Dep't of Justice, *Fusion Center Guidelines: Developing and Sharing Information and Intelligence in a New Era* (Aug. 2006) https://bja.ojp.gov/sites/g/files/xyckuh186/files/media/document/fusion_center_guidelines_law_enforcement.pdf (last visited Oct. 14, 2025) (detailing privacy requirements for fusion centers).

[7] Will Parrish and Jason Wilson, *Revealed: Anti-Terror Center Helped Police Track Environmental Activists*, The Guardian (Oct. 2, 2019), https://www.theguardian.com/us-news/2019/oct/02/oregon-pipelines-protests-monitoring-police-anti-terror-unit.

[8] ORS § 181A.250.

In fact, the Oregon legislature has never explicitly authorized or regulated TITAN. As Appellants explain, this makes TITAN inherently *ultra vires*. It also creates substantial and continuing risks to public safety, constitutional rights, and the integrity of sensitive data. This is due directly to a lack of clear authorization and nonexistent independent oversight.

ARGUMENT

I. FUSION CENTERS—AN UNREGULATED, NETWORKED DOMESTIC INTELLIGENCE ENTERPRISE

Unauthorized, unaccountable, and non-transparent law enforcement operations are incompatible with democratic governance. Yet abusive domestic spying activities, sometimes conducted on the basis of racial and religious bias or political motives, have been commonplace throughout the history of law enforcement intelligence operations in the United States, including in Oregon.[9] Fusion centers like TITAN embody these risks.

In almost all instances, fusion centers, including TITAN, are state-run. They create a hub of federal, state, and local law enforcement and homeland security agencies alongside non-law enforcement emergency services and public health agencies, National Guard, and locally selected private firms and contractors, to

[9] *See, e.g.*, Frank J. Donner, *Protectors of Privilege: Red Squads and Police Repression in Urban America* (University of California Press 1990); Kristian Williams, Our Enemies in Blue: Police and Power in America, 198-234, (AK Press 2015).

share, analyze, and disseminate information widely.[10] Originally established to share counterterrorism intelligence, most fusion centers, like TITAN, expanded their mission to cover "all crimes." TITAN continued this mission creep, investigating "all threats," or "all hazards."[11] This mission evinces an intent to collect and share more than just criminal intelligence information. Each of the different entities that participate in fusion centers have distinct missions, and are governed by different laws, regulations, and policies regarding their access to and handling of personally-identifiable information. Together the approximately eighty fusion centers form a national network, though no legislation establishes it, and no entity oversees it.[12]

Personnel working at fusion centers have access to state and local law enforcement data, such as criminal intelligence systems, and repositories like gang databases,[13] as well as federal law enforcement, homeland security,

---

[10] 2018 Fusion Centers Final Report), 2–4.

[11] TITAN embraces this broad mission on its website. Oregon Dep't of Justice, *Oregon TITAN Fusion Center*, https://www.doj.state.or.us/oregon-department-of-justice/divisions/criminal-justice/ortitan/ (last visited Oct. 14, 2025). This is a common phenomenon throughout the entire fusion center network. *See* U.S. Senate Permanent Subcomm. on Investigations (hereinafter "Federal Support for Fusion Centers"), *Federal Support for and involvement in State and Local Fusion Centers*, 93–96 (Oct. 3, 2012) https://cdn.govexec.com/media/gbc/docs/pdfs_edit/100312cc1.pdf.

[12] *See* Cong. Research Serv., *supra* n.6, at 11.

[13] *See, e.g.*, Thomas Nolan, *The Trouble with So-Called "Gang Databases": No Refuge in the "Sanctuary"* Am. Const. Soc'y (June 27, 2018),

counterterrorism, military, and intelligence data systems, including, for some, sensitive classified information.[14] Fusion center personnel also have access to data sets containing information about members of the general public that has been compiled by a host of government agencies and private companies. For many of these individuals, there is no suspicion of wrongdoing whatsoever. These sources include data derived from automatic license plate readers, social media monitoring systems, and commercial data brokers, all of which are plagued with inaccuracies.[15]

In the absence of clear regulations and effective independent oversight, the operations of these fusion centers increase the risks that: (1) law enforcement officials can gain easy access to detailed private information about individuals and groups not suspected of criminal activity; and (2) non-law enforcement participants

---

https://www.acslaw.org/expertforum/the-trouble-with-so-called-gang-databases-no-refuge-in-the-sanctuary/.

[14] Fusion Center Guidelines, *supra* n.7, at B-3-C-6.

[15] *See, e.g.* Lauren Fichten and Alex Clark, *When license plate readers get it wrong*, CBS News (July 24, 2025) https://www.cbsnews.com/news/license-plate-readers-alpr-mistakes/; Joseph Cox, *Congress Launches Investigation into Flock After 404 Media Reporting*, 404 Media (Aug. 8, 2025), https://www.404media.co/congress-launches-investigation-into-flock-after-404-media-reporting/; Rachel Levinson-Waldman and José Guillermo Gutiérrez, *Study Reveals Inadequacy of Police Departments' Social Media Surveillance Policies*, Brennan Center for Justice (Feb. 7, 2024), https://www.brennancenter.org/our-work/analysis-opinion/study-reveals-inadequacy-police-departments-social-media-surveillance; James Pinchot et al., *Data Privacy Issues In The Age Of Data Brokerage: An Exploratory Literature Review*, Issues in Information Systems 19(3) (2018), https://iacis.org/iis/2018/3_iis_2018_92-100.pdf.

can gain access to sensitive personal information that has been collected using law enforcement authorities, and use it for non-law enforcement purposes. These risks apply to TITAN, as illustrated by the long and deeply enmeshed relationship TITAN officers had with Pembina and its consultants at Teneo, and their collaboration to monitor and even interfere with the constitutionally-protected activities of activists opposed to the construction of the Jordan Cove pipeline.[16]

The lack of regulation and oversight of fusion centers has resulted in specious and abusive intelligence reporting and enormous data security vulnerabilities. A 2012 Senate Homeland Security Committee investigation found that centers produced analytical products that were "oftentimes shoddy, rarely timely, sometimes endangering citizens' civil liberties and Privacy Act protections, occasionally taken from already-published public sources, and more often than not unrelated to terrorism."[17] The investigation also found that fusion centers "yielded little, if any, benefit to Federal counterterrorism intelligence efforts."[18] Independent inquires confirm that little has changed since. Two recent, massive data breaches exposed the sensitive information of TITAN and other fusion centers

[16] Parrish and Wilson, *supra* n.8.), https://www.theguardian.com/us-news/2019/oct/02/oregon-pipelines-protests-monitoring-police-anti-terror-unit; *see also* Pl.'s Op. Br. at 20-21.
[17] Cong. Research Serv., *supra* n.13 at 1.
[18] *Id*. 27.

to unauthorized users and the public.[19] Together, these dynamics can undercut privacy, political speech, association, and criminal procedural rights, and facilitate agencies' targeting of people on political or religious grounds.[20]

---

[19] In 2023, the federal office that administers a sensitive intelligence sharing portal used by fusion centers misconfigured its access settings, opening the portal to tens of thousands of additional, unauthorized users for over two months, resulting in improper access of hundreds of federal intelligence reports, including those about protest activities. The impact on state information shared in the system is likely far more significant, but was never assessed in publicly available reporting. Andy Greenberg, *A DHS Data Hub Exposed Sensitive Intel to Thousands of Unauthorized Users*, Wired (Sep. 16, 2025), https://www.wired.com/story/a-dhs-data-hub-exposed-sensitive-intel-to-thousands-of-unauthorized-users/. Earlier, in 2020, hackers exploited a security vulnerability at a fusion center contractor to obtain 269 gigabytes of sensitive information from 251 different law enforcement agencies, as well as the FBI, DHS, and the National Guard, spanning a 24-year period. Micah Lee, *Hack of 251 Law Enforcement Websites Exposes Personal Data of 700,000 Cops*, The Intercept, June 15, 2020, https://theintercept.com/2020/07/15/blueleaks-anonymous-ddos-law-enforcement-hack. A review of one searchable repository of documents from this leak identified eight TITAN intelligence reports and a number of documents and emails shared with TITAN by other agencies, highlighting the vulnerability of Oregonians. The "Library of Leaks" maintains a searchable copy of BlueLeaks, which contains thousands of fusion center documents following a hack. Library of Leaks, https://search.libraryofleaks.org/ (last visited Oct. 14, 2025). The library contains numerous examples of TITAN intelligence documents, including those with personally identifiable information of individuals. *See, e.g.,* "131118 LES Oregon TITAN Fusion Center Bulletin - Astoria PD Fraudulent Credit Card Investigation.pdf," Library of Leaks (Oct. 22, 2024), https://search.libraryofleaks.org/entities/355616.81a3c4774ac34bb558e2de1de01ebb5bef026507; "005-13 - UPS Trucks Hijacked in Mexico.pdf," Library of Leaks (Oct. 22, 2024), https://search.libraryofleaks.org/entities/381874.7fa516d9bfa9badec1045e61f97ee48cf734b00f; "091-14 Murder Suspect Search.pdf," Library of Leaks (Oct. 21, 2024), https://search.libraryofleaks.org/entities/133486.49566c4f294e6cc3413e54b1929fe398b278134a.

Fusion centers like TITAN pose a great cost to privacy and civil liberties, with little demonstrable benefit. Yet the federal government still provides no meaningful oversight of the fusion center network, even while DHS administers the nationwide enterprise.[21] With lax federal rules, a host of participants with different data sets and agendas, and no independent oversight, state legislatures are left to make sure that these domestic intelligence hubs comport with basic democratic principles: effectiveness, transparency, accountability, and the protection of rights. Those ends are best served by the explicit legislative authorization and regulation that is lacking in Oregon.

A. Before Fusion Centers: Intelligence Abuse and Fleeting Reforms

Fusion centers are but the latest in a long history of domestic intelligence operations that leave Americans vulnerable to being targeted for their political

---

[20] This exact result occurred when one entity in the fusion center data-sharing environment provided questionable, politicized intelligence to state authorities who then used it—alongside their investigative files and other information obtained via domestic intelligence sharing—to engage in a criticized RICO indictment of activists. See Spencer Reynolds, "DHS's Newest Target: Atlanta's 'Cop City' Activists," Just Security (June 13, 2023), https://www.justsecurity.org/86876/dhss-newest-target-atlanta-cop-city-activists/; Brennan Center, "Coalition Calls for Congressional Action on DHS's Politicized Intelligence Targeting Activists in Atlanta, Georgia" (Dec. 15, 2023), https://www.brennancenter.org/our-work/research-reports/coalition-calls-congressional-action-dhss-politicized-intelligence; Timothy Pratt, *Judge drops domestic terrorism charges against Atlanta 'Cop City' protester*, The Guardian (Aug. 15, 2025), https://www.theguardian.com/us-news/2025/aug/15/cop-city-protester-charges-dropped.

[21] *See* Michael German, et. al, *supra* n.3.

activities. They are the descendants of civil rights era political targeting, such as the FBI's counterintelligence program, or "Cointelpro," and decades of abuses nationwide, including in Oregon.[22] Periods of reform federally and in the state have attempted to address this history of overreach. But that work has been undermined by the unregulated nature of fusion centers, including TITAN, and the ecosystem in which they exist that emerged after September 11. For decades, many state and local law enforcement agencies formed "Red Squads" to inhibit labor organizing and anti-war activism, and to monitor the personal activities of political opponents.[23]

Oregon was not immune from intelligence abuses. Between 1937 and 1942, the FBI collected a list of all Japanese Americans living in the Hood River area and deputized local officials to spy on the people on the list.[24] In 1974, the Portland Police Bureau ("PPB") disclosed that they had for decades been maintaining secret

---

[22] *See* U.S. Senate Select Committee to Study Governmental Operations, Supplemental Detailed Staff Reports on Intelligence Activities and the Rights of Americans ("The Church Committee Report"), Book III (1976), https://www.intelligence.senate.gov/wp-content/uploads/2024/08/sites-default-files-94755-iii.pdf; *see also* Protectors of Privilege, *supra* n.10; Our Enemies in Blue: Police and Power in America, *supra* n.10.

[23] Protectors of Privilege, *supra* n.10; Our Enemies in Blue: Police and Power in America, *supra* n.10.

[24] "Don't Let Police Be Used For Political Spying Or As Federal INS Agents," ACLU of Oregon 1 (Fall 2002), https://www.aclu-or.org/sites/default/files/181575_Briefing_Paper_02.pdf?fbclid=IwAR3mdsa0WeeE273OI0DCm6HAmCJaSsAqiEvO15GqOTzUQeiLj_0DtidmdsA (hereinafter, "ACLU-OR Briefing Paper").

files on political organizations engaged in civil, environmental, gender equity, and immigrant rights work in Oregon.[25]

Like similar units in other large cities around the country, PPB housed its intelligence-gathering operation in a "Red Squad" of its own, later called a "Criminal Intelligence Unit." The entity collected and maintained files on members of disfavored political parties, based solely on their political or social views. To build these files, PPB monitored, infiltrated, and took surveillance photographs of the constitutionally protected meetings, activities, and speech of people whose viewpoints challenged prevailing political and social norms.[26] This surveillance was as thorough as it was invasive: PPB monitored some 576 groups' political activities and amassed the names of around 3,000 associated individuals.[27] Today,

---

[25] The *Portland Tribune* uncovered information that included over 576 organizations and 3,000 individuals. ACLU-OR Briefing Paper at 1. Additional organizations included: American Friends Service Committee, American Indian Movement, Amnesty International, Bahai Faith, Black United Front, Coalition Against Domestic Violence, Greenpeace, Hispanic Commission, McKenzie River Gathering, NOW, Peace House (Ashland), Rape Relief Hotline, Sierra Club, Sisters of the Road Cafe, United Way, Women's Rights Coalition. *Id*.

[26] Kathy Carbone, *Surveillance to Art: "Flipping Around the Paranoia"*, J. Critical Library & Info. Stud. 2-4 (2018).

[27] Kathy Carbone, *A collection and its many relations and contexts*, 76:3 J. Documentation 753 (2020).

PPB's intelligence unit works with and obtains information from the TITAN fusion center.[28]

The public shock following the revelations of these decades of transgressions led to nationwide reform efforts in the 1970s and 1980s intended to focus investigations on suspected criminal activity, impede abuse, and promote transparency. At the federal level, Congress established independent oversight mechanisms and public accountability measures, such as the Freedom of Information Act.[29] Congress passed the Privacy Act to protect against misuse of personally identifiable information residing in federal government databases. And the Attorney General issued guidelines requiring agents to have specific and articulable facts establishing a reasonable indication of criminal activity before initiating intrusive investigative activities.[30]

---

[28] Portland Police Bureau, Criminal Intelligence Unit, https://www.portland.gov/police/divisions/criminal-intelligence-unit (last visited Oct. 14, 2025).

[29] Eric Rosenbach and Aki Peritz, "Congressional Oversight of the Intelligence Community," Belfer Center for Science and International Affairs, Harvard Kennedy School (July 2009), https://www.belfercenter.org/publication/congressional-oversight-intelligence-community; U.S. Dep't of Justice, "The Foreign Intelligence Surveillance Act of 1978 (FISA)," https://bja.ojp.gov/program/it/privacy-civil-liberties/authorities/statutes/1286 (last visited Oct. 14, 2025); Cong. Research Serv., *The Freedom of Information Act (FOIA): A Legal Overview* (June 27, 2024), https://www.congress.gov/crs-product/R46238.

[30] See U.S. Dep't of Justice Inspector General, *The Federal Bureau of Investigation's Compliance with the Attorney General's Investigative Guidelines*, 29 (2005), https://oig.justice.gov/sites/default/files/legacy/special/0509/final.pdf.

To curb nonfederal intelligence abuses, in 1980 the U.S. Department of Justice imposed limits on state and local law enforcement agencies' collection and sharing of criminal intelligence information through federally funded systems. In practice, most nonfederal law enforcement agencies have applied these strictures to all of their intelligence activities.[31] The 1980 DOJ regulation, at 28 C.F.R. Part 23, requires the collection, retention, and sharing of criminal intelligence information about individuals or groups to be supported by a reasonable suspicion that they are involved in criminal activity and the information relates to the activity.[32] The regulation prohibits the collection of information about "the political, religious or social views, associations, or activities of any individual or any group, association, corporation, business, partnership, or other organization unless such information directly relates to criminal conduct or activity."[33] It also permits sharing only with individuals who have a "need to know and a right to know the information in the

---

[31] U.S. Dep't of Justice, *28 CFR Part 23: A Guide to Criminal Intelligence Policies*, 2 (2015) https://bja.ojp.gov/sites/g/files/xyckuh186/files/media/document/28-cfr-part-23-overview-brochure_2015.pdf. The regulations were updated in small ways in 1993 and 1998. Technically the regulation applies only to systems funded through the Omnibus Crime Control and Safe Streets Act of 1968, but it has been more widely applied in practice. David Carter, *Law Enforcement Intelligence: A Guide for State, Local, and Tribal Law Enforcement Agencies*, U.S. Dep't of Justice 149 (Vol. 2, Jan. 2009), https://portal.cops.usdoj.gov/resourcecenter/ric/Publications/cops-p064-pub.pdf.

[32] 28 C.F.R. § 23.20(a).

[33] 28 C.F.R. § 23.20(b).

performance of a law enforcement activity."[34] And it limits retention of information within criminal intelligence systems, requiring agencies to purge information after five years.[35]

In 1981, the Oregon Legislature finally acted to curb intelligence abuses by passing what is now codified as ORS § 181A.250 (previously ORS § 181.575).[36] The Oregon law imposes a similar standard as the federal regulation, but applies to a broader set of information.[37] Oregon's state law prohibits state and local law enforcement agencies, including the Oregon DOJ, from collecting or maintaining "information about the political, religious or social views, associations or activities of any individual, group, association, organization, corporation, business or partnership unless such information directly relates to an investigation of criminal activities, and there are reasonable grounds to suspect the subject of the information is or may be involved in criminal conduct."[38] This statute, which is now incorporated in local law enforcement agencies' policy manuals throughout

---

[34] 28 C.F.R. § 23.20(e).
[35] 28 C.F.R. § 23.20(h).
[36] 1981 Or. Laws. ch. 905 § 8.
[37] *See* Tape Recording, Senate Committee on Justice, July 22, 1981, Tape 309, Side A (statement of then-Attorney General Dave Frohnmayer asserting that Oregon legislation, as the ACLU proposed to amend it, would be more restrictive than the federal standard).
[38] ORS § 181A.250.

the state,[39] has been a critical tool allowing local law enforcement to refuse to participate in abusive federal counterterrorism operations that have promoted religious and racial profiling and other biased methods.[40]

However, a policy shift after the terrorist attacks of September 11, 2001, significantly eroded the federal, and potentially Oregon's, protections. DOJ loosened the FBI's investigative guidelines to give it greater authority to investigate individuals and groups without a criminal predicate.[41] DOJ and DHS also launched a "see something, say something" campaign and established "Suspicious Activity Reporting" (SAR) programs—in which fusion centers like TITAN participate—to encourage people to report non-criminal activities to law enforcement.[42] The U.S. Congress created a nationwide terrorism "information

---

[39] *See, e.g.,* Medford Police Department, "Medford PD Policy Manual," Section 600.5, "Collection or Maintenance of Specific Information," https://www.medfordoregon.gov/files/assets/public/v/1/police/documents/mpd-policy-manual_2.pdf.

[40] For example, when the U.S. Department of Justice investigated young Arab men after September 11, the City of Portland relied on this statute to refuse to participate. ACLU-OR Briefing Paper at 1.

[41] Emily Berman, "Domestic Intelligence: New Powers, New Risks," Brennan Center for Justice (2021), https://www.brennancenter.org/sites/default/files/2019-08/Report_Domestic_Intelligence_Powers_Risks.pdf.

[42] Dep't of Homeland Security, "Recognize the Signs of Terrorism-Related Suspicious Activity," https://www.dhs.gov/sites/default/files/2025-05/25_04_seesay_indicator-infographic_en_8.5x11.pdf (last visited Oct. 14, 2025); Dep't of Homeland Security, "Reporting Suspicious Activity in Oregon," https://www.dhs.gov/see-something-say-something/reporting/oregon (last visited Oct. 14, 2025).

sharing environment" and directed the new Secretary of Homeland Security and Director of National Intelligence to facilitate the exchange of this SAR data between the federal intelligence community and state and local law enforcement.[43]

The post-September 11 shift in federal intelligence policies reversed many of these 1980s reforms or—as with 28 C.F.R. Part 23—simply left them unenforced, and at a minimum complicated compliance with applicable state laws like Oregon's.[44]

---

[43] Taken from the recommendations of the 9/11 Commission, the DNI was tasked with transforming the intelligence community culture from "need to know" to "need to share." *The 9/11 Commission Report: Final Report of the National Commission on Terrorist Attacks Upon the United States*, Nat'l Comm'n on Terrorist Attacks Upon the United States, 417 (2004); Pub. L. No. 108-458, § 1011, 118 Stat. 3638 (2004); Cong. Research Serv., *Intelligence Information: Need-to-Know vs. Need-to-Share*, 5 (June 6, 2011), https://sgp.fas.org/crs/intel/R41848.pdf.

[44] Beginning in 2008, the federal government began issuing guidance that obscured whether 28 C.F.R. Part 23 restrictions applied to leads reported through "see something, say something" programs, which it directed fusion centers to receive and process. The federal government created two competing portals to receive these tips, the FBI's eGuardian system and the Office of the Director of National Intelligence's (ODNI) Information Sharing Environment (ISE). *See* Am. Civil Liberties Union, "ACLU EYE on the FBI: Documents Reveal Lack of Privacy Safeguards and Guidance in Government's "Suspicious Activity Report" Systems," (Oct. 30, 2013), https://www.aclu.org/documents/aclu-eye-fbi-documents-reveal-lack-privacy-safeguards-and-guidance-governments-suspicious-0; Nusrat Choudhury, "Where's the Suspicion in Government's 'Suspicious Activity' Reports?," ACLU (Oct. 30, 2013), https://www.aclu.org/news/national-security/wheres-suspicion-governments-suspicious-activity; David Lewis, *Re: The definition of SARs* (email to Thomas O'Reilly) (Sep. 13, 2010), https://www.aclu.org/files/assets/aclueg000394.pdf.

B. TITAN and Other Fusion Centers Lack Guardrails, which Undermines Established Legal Protections and the Public Interest

Fusion centers have access to vast data and personnel from federal, state, and local agencies, law enforcement and otherwise, and the private sector. They also receive support in the form of funding and information from the federal government.[45] All of these resources are pooled together in a shared environment that is unregulated by legislative authorization or guidance, including in the case of TITAN. Internal privacy policies—issued at TITAN's discretion, not with legislative direction—do little to overcome these challenges. Further, placing non-law enforcement government officials, private entities, and contractors into fusion centers risks the unauthorized and possibly unlawful collection, maintenance, disclosure, and use of information retained in these restricted law enforcement and intelligence data systems.[46]

---

[45] This includes broad access to federal law enforcement, counterterrorism, homeland security, and military intelligence data systems and personnel. *See* Federal Support for Fusion Centers, *supra* n.10 at 10–17; Government Accountability Office, *Federal Efforts Are Helping to Alleviate Some Challenges Encountered by State and Local Information Fusion Centers* (Oct. 30, 2007), https://www.gao.gov/products/gao-08-35.

[46] Moreover, not all information shared by fusion centers is disseminated through official platforms governed by these rules; much is shared informally through emails, phone calls, or in-person meetings. These methods evade basic tracking and transparency. *See* Jeremy G. Carter et al., *Law Enforcement Fusion Centers: Cultivating an Information Sharing Environment While Safeguarding Privacy*, Journal of Police and Criminal Psychology 32 (2017) 23, https://scholarworks.indianapolis.iu.edu/bitstream/handle/1805/11245/%20Carter_2016_law.pdf;sequence=1.

Accordingly, without legislative regulation of TITAN and its engagement with other fusion centers, this networked approach creates challenges for TITAN's operations and law enforcement employees to remain in compliance with ORS 181A.250 and 28 C.F.R. Part 23. TITAN personnel regularly receive, analyze, and redistribute intelligence materials produced by other state and local fusion centers whose laws, regulations, or policies may be less stringent. These other fusion centers contribute information to the same databases, systems, and information sharing platforms that TITAN fusion center employees use to conduct their own analyses. TITAN officers are free to combine this information with that derived from their own investigations, such as their activities targeting the activists challenging the Jordan Cove pipeline.

The information available through these systems to fusion center personnel is vast, varied, and includes data about ordinary Americans not suspected of criminal activities.[47] It can also be redundant, erroneous, or misleading, yet relied

[47] Fusion center personnel have access to a wide range of data: federal, state, and local law enforcement files, including related to minor infractions; unclassified and classified intelligence; biographic data; vehicle information; and more. These systems, together, are accessed by many tens of thousands of personnel nationwide, including from the private sector, and in some cases foreign governments. Mary Ellen Callahan, "Privacy Impact Assessment for the HSIN 3.0 Shared Spaces: On the Sensitive but Unclassified Network," Dep't of Homeland Security (July 25, 2012) 1–2, https://www.dhs.gov/sites/default/files/publications/privacy_pia_ops_hsin_sharedspace_07252012.pdf; Erin M. Prest, "Privacy Impact Assessment for the Law Enforcement Online (LEO) Services," Dep't of Justice, (July 16, 2019) 2, 19,

upon by analysts at TITAN and elsewhere with no opportunity to remedy flawed intelligence.[48] While some information in these systems might be useful for criminal investigations, a lack of clear limits and regulation means it can all too easily be abused—and present an opportunity for a legislature to act by dictating exactly what types of information may be collected, how they may be used, and with whom they may be shared.[49]

Unregulated entanglement with private data brokers[50] exacerbates these problems. Fusion centers purchase access to data sets collected by private-sector

---

https://www.fbi.gov/file-repository/pias/pia-leo-111022.pdf/view; Erin M. Prest, "Privacy Impact Assessment for the National Data Exchange (N-DEx) System," Dep't of Justice (Aug. 29, 2018), 2–3, https://www.fbi.gov/file-repository/pias/pia-national-data-exchange-n-dex-system.pdf; Law Enforcement Information Exchange, "Introduction and Overview," (accessed November 19, 2022), https://www.linxnc.us/Linx/WebHelp/overview.htm; Naval Criminal Investigative Service, "LInX/D-Dex" (accessed November 19, 2022), https://www.ncis.navy.mil/Mission/Partnership-Initiatives/LInX-D-Dex; Dep't of Homeland Security, "IT Program Assessment: DHS — Homeland Secure Data Network (HSDN),", https://www.dhs.gov/xlibrary/assets/mgmt/itpa-dhs-hsdn2012.pdf (last visited Oct. 14, 2025).

[48] *See, e.g.,* Robert Mandel, *Global Data Shock: Strategic Ambiguity, Deception, and Surprise in an Age of Information Overload* (Stanford, CA: Stanford University Press, 2019); and Tara Seals, "Threat Intelligence Strategies Suffer from Data Overload," Info Security Group, https://www.infosecurity-magazine.com/news/threat-intelligence-strategies.

[49] Dep't of Homeland Security, "Homeland Security Information Network", 2020 Annual Report: Delivering Mission Success (June 21, 2021), 12, https://www.dhs.gov/sites/default/files/publications/hsin-fy20-annual-report_1.pdf.

[50] *See* Digital Dragnets: Examining the Government's Access to Your Personal Data, Hearing Before the H. Comm. on the Judiciary, 117th Cong., Statement of Sarah Lamdan, (July 19, 2022) https://www.congress.gov/event/117th-congress/house-event/115009/text; Chris Cushing et al., "MIAC [Maine

data brokers like LexisNexis and credit reporting agencies like TransUnion,[51] and have contracted with data analytics firms like Palantir, mass national surveillance companies like Flock, and facial recognition companies such as Tygart Technology and Clearview AI.[52] There is little public information about how fusion centers use these data sets and technologies, which can reveal intimate details of people's lives. The information gathered by these brokers and data analytic firms is far more likely to pertain to innocent persons than to criminals.[53]

Information and Analysis Center] Shadow Report: Reporting on MIAC Auditing Processes Supplemental to the DPS Report," 34 (April 1, 2022), https://mainebeacon.com/wp-content/uploads/2022/03/MIAC-Shadow-Report.pdf.

[51] *Id*.

[52] Caroline Haskins, "This Is Palantir's Top-Secret User Manual for Cops," Vice (July 12, 2019), https://www.vice.com/en/article/revealed-this-is-palantirs-top-secret-user-manual-for-cops/ (describing use of Palantir by a Northern California fusion center); Stephen Mayhew, "Fusion Intelligence Center Implements Tygart Facial Recognition Software," BiometricUpdate.com, (Oct. 16, 2014), https://www.biometricupdate.com/201410/fusion-intelligence-center-implements-tygart-facial-recognition-software; Ryan Mac, Caroline Haskins, and Logan McDonald, *Clearview's Facial Recognition App Has Been Used by the Justice Department, ICE, Macy's, Walmart, and the NBA*, BuzzFeed News (Feb. 27, 2020), https://www.buzzfeednews.com/article/ryanmac/clearview-ai-fbiice-global-law-enforcement; Isiah Holmes, *Analysis of Flock use by Wisconsin cops reveals trends, raises questions*, Wisconsin Examiner (Aug. 6, 2025), https://wisconsinexaminer.com/2025/08/06/analysis-of-flock-use-by-wisconsin-cops-reveals-trends-raises-questions/.

[53] *See* Digital Dragnets: Examining the Government's Access to Your Personal Data, Hearing Before the H. Comm. on the Judiciary, 117th Cong., Statement of Elizabeth Goiten, (July 19, 2022) https://www.congress.gov/event/117th-congress/house-event/115009/text

Underscoring the need for outside legislative regulation to set TITAN's rules of engagement, neither the national network, the federal government, nor TITAN itself have addressed the risks resulting from the nontransparent, unreliable, and at times erroneous nature of this data.

C. A Lack of Authorization and Regulation Allow Private Sector Participation in TITAN that Undermines Rights, Privacy, and Law Enforcement Integrity

TITAN, like other fusion centers, collaborates closely with private industry, raising the possibility that fusion centers and related joint operations may serve private interests rather than public safety. The involvement of private entities may also result in political targeting and even retaliation. Indeed, in Appellants' case here involving peaceful activism opposed to a pipeline, TITAN "facilitated the creation of, and worked closely alongside, a taskforce that included a dedicated unit" within the sheriff's office that was "funded entirely by Pembina, the private fossil fuel company" that sought to build the Jordan Cove pipeline.[54] TITAN also "cooperated and coordinated" with "a private public relations firm retained by Pembina to monitor opposition to the project and turn public sentiment against the organizations and individuals opposing [the pipeline]."[55] TITAN exploited its broad mandate, set by the agency itself, not the legislature, to serve the needs of

[54] Compl. ¶ 49.
[55] *Id*. ¶ 55.

industry. Such specialized use of law enforcement resources is legally questionable at best.[56]

Appellants' lawsuit alleges that TITAN has, "for years, engaged in and facilitated the surveillance of environmental advocacy groups, community organizations, and Native American tribes opposing the proposed $10 billion fossil fuel pipeline and export terminal known as Jordan Cove LNG," which was under development by Canadian energy provider Pembina.[57] *The Guardian* obtained documents in 2019 indicating that a TITAN analyst received emails sent from a local sheriff's office reporting attendance at a rally that he was tracking despite the "lack of criminal nexus."[58] When environmental advocates and business leaders interrupted a 2018 chamber of commerce meeting to criticize the body for taking oil company donations, TITAN analysts issued reports on these critics.[59]

The involvement of private entities undermines oversight, facilitates misuse of state resources, and undermines transparency, which authorization and

---

[56] *See Weyerhaeuser Co. v. Klamath County, Or.,* 151 F.3d 996 (9th Cir. 1998) (concluding that the Klamath County Sheriff lacked express, implied, and apparent authority under Oregon law to enter into a contract to provide security services to a private logging company).
[57]Compl. ¶ 48 ; *see also* Parrish and Wilson, *supra* n.8.
[58] Compl. ¶ 51; Will Parrish and Jason Wilson, *FBI and Police Monitoring Oregon Anti-Pipeline Activists*, The Guardian (Aug.8, 2019), https://www.theguardian.com/us-news/2019/aug/08/fbi-oregon-anti-pipeline-jordan-cove-activists; Parrish and Wilson, *supra* n.8.
[59] Compl. ¶¶ 53–54

regulation can address. Unlike government agencies, these private entities have no police authority nor are they subject to open records laws, leaving no public oversight of their operations inside fusion centers. And the federal Freedom of Information Act—like many state open records laws—contains exemptions for corporate information or supposed trade secrets, hampering an understanding even of how *public* entities work with companies.[60]

Rules established by legislative authorization can fix the harms of this joint environment by clearly establishing the work that may go on in a fusion center, clarify who may perform that work, set restrictions on who may remove data from the agency, and strengthen—not limit—public transparency.

D. Lacking Meaningful Guardrails and Transparency, Fusion Centers like TITAN Monitor Political Speech and Activity

Fusion centers, often operating under weak safeguards or lax implementation of those rules, can violate even written prohibitions on collecting and disseminating information regarding political, religious or social views, associations, or activities. TITAN is no exception: Its personnel have improperly monitored and reported on environmental protesters, Native American tribes, and Black Lives Matter supporters not engaged in criminal activities.[61] That is in

[60] *See* 5 U.S.C. § 552(b)(4); O.R.S. § 192.345(2).

[61] While any operational details are not yet public, the White House's September 2025 directives to many federal agencies working in conjunction with fusion centers to target left-wing activists, non-profit organizations, and viewpoints may

addition to the incident at the heart of Appellants' complaint, in which TITAN officers engaged closely with a pipeline company and its consultants to target and undermine environmental activists.

In 2015, TITAN analysts used commercial social media monitoring software to physically locate social media users posting #blacklivesmatter on Twitter. A TITAN analyst's misinterpretation of a tweet that included a logo for the band Public Enemy led to the creation of a formal threat assessment report against the Director of Civil Rights for the Oregon Department of Justice. An outside investigator looking into the matter reported that the department's chief counsel expressed concern that TITAN "was operating in an outdated manner with few written policies that were poorly communicated and were insufficient to address relevant issues." The senior attorney further indicated that "in the past, [TITAN] was prepared to report on groups that were assembling in protest even when there was no report of criminal nexus or public safety concern."[62]

---

ratchet up the risks of political targeting. Exec. Order No. 14085, *Designating Antifa as a Domestic Terrorist Organization*, 90 Fed. Reg. 12345 (Sept. 22, 2025), https://www.whitehouse.gov/presidential-actions/2025/09/designating-antifa-as-a-domestic-terrorist-organization; National Security Presidential Memorandum 7, *Countering Domestic Terrorism and Organized Political Violence* (Sept. 25, 2025), https://www.whitehouse.gov/presidential-actions/2025/09/countering-domestic-terrorism-and-organized-political-violence.

[62] Carolyn Walker, "Investigation Report," Am. Civil Liberties Union of Oregon 21 n.24 (Apr. 6, 2016), https://www.aclu-or.org/sites/default/files/DOJ_Investigation_Final_Redacted_Report.pdf

This abuse occurred, at least in part, because of TITAN officers' views that ORS § 181A.250 and 28 C.F.R. Part 23 did not apply to this work, including searches made in social media monitoring software—a conclusion suggested also by the independent investigation.[63] A statute clearly delineating TITAN's authorities and guardrails could significantly correct this shortcoming.

This episode at TITAN is significant and a review of incidents at other fusion centers further illustrates how TITAN's model, unchanged, may result in more abuse going forward. The lack of authorization and guardrails have, nationwide over the last two decades, resulted in fusion centers tracking protestors and casting peaceful activities as potential threats, as illustrated by leaked materials.[64] Targets of the fusion center network have included racial justice and environmental advocates, right-wing activists, and third-party political

---

[63] *Id*. at 29-30.

[64] TITAN is no different and in fact TITAN told the ACLU of Oregon and Don't Shoot PDX that the agency maintains over 11,000 records responsive to a request the organizations filed about TITAN monitoring activities. Highlighting the need for independent oversight and regulation, the agency continues to shield those records from public release under ORS § 192.355(4) (information submitted in confidence) and Oregon Administrative Rule 137-090-0040(2) (requiring confidentiality of TITAN records obtained from another agency); *see also* Lisa Kwon, *Letter re: Public Records Request* (Letter to Michael Slauson, Oregon Dep't of Justice) (Dec. 12, 2024), https://www.aclu-or.org/sites/default/files/field_documents/sent-oregon_titan_fusion_center_public_records_request_.pdf.

candidates—all at least in large part due to their political views.[65] In 2020, fusion centers regularly tracked the overwhelmingly nonviolent racial justice protests organized across the country, including in Oregon, in response to the police killings of George Floyd and Breonna Taylor.[66]

As a routine matter, fusion center intelligence available to TITAN can be hyperbolic, politically targeted, or outright incorrect. Numerous examples have

---

[65] See Joshua Rhett Miller, *Fusion Centers' Expand Criteria to Identify Militia Members*, Fox News, (Dec. 24, 2015), https://www.foxnews.com/politics/fusion-centers-expand-criteria-to-identify-militia-members.

[66] Micah Lee, *How Northern California's Police Intelligence Center tracked Protests*, The Intercept (Aug. 17, 2020), https://theintercept.com/2020/08/17/blueleaks-california-ncric-black-lives-matter-protesters/. For its part, the DHS agency that works with fusion centers used questionable intelligence databases and social media analyzed by a private security tool to create dossiers on Portland protestors called "baseball cards." This information was injected back into the systems that TITAN accesses. Andrew Selsky, *US gathered intel on Oregon protestors, report shows*, AP News (Oct. 28, 2022), https://apnews.com/article/oregon-arrests-donald-trump-race-and-ethnicity-portland-95743ad77f7fd228515bf6139c45b0b1; "Office of Intelligence and Analysis Operations in Portland," Dep't of Homeland Security Office of Inspector General (Apr. 20, 2021), https://www.wyden.senate.gov/imo/media/doc/I&A%20and%20OGC%20Portland%20Reports.pdf (DHS inspector general report detailing the invasive nature of these dossiers); Thomas Brewster, *ICE Just Spent Millions On Surveillance Tech Banned By Facebook*, Forbes (Sep. 18, 2025), https://www.forbes.com/sites/thomasbrewster/2025/09/18/ice-spends-millions-on-social-media-spy-tech-banned-by-meta-facebook/ (the intelligence tool, Tangles, is now owned by PenLink and used heavily by immigration authorities); Rachel Levinson-Waldman and José Guillermo Gutiérrez, "Overdue Scrutiny for Watch Listing and Risk Prediction," Brennan Center for Justice (Oct. 19, 2023), https://www.brennancenter.org/our-work/policy-solutions/overdue-scrutiny-watch-listing-and-risk-prediction (questionable databases).

become available through open records requests and leaks. For instance, a Texas fusion center created intelligence reports about events as innocuous as a Juneteenth celebration, a meditation circle, and candlelight vigils for victims of police violence.[67] The Maine fusion center tracked the 2020 racial justice protests and disseminated online conspiracy theories and disinformation exaggerating the potential for violence at demonstrations—based on information obtained from DHS.[68]

The national fusion center network distributed false threat warnings regarding "antifa arsonists" starting wildfires in the western United States and "anarchist extremists" planning an "International Sabotage Day."[69] Internal efforts

---

[67] Mara Hvistendahl, *Austin Fusion Center Spied on Nonpolitical Cultural Events*, The Intercept (Nov. 30, 2020), https://theintercept.com/2020/11/30/austin-fusion-center-surveillanceblack-lives-matter-cultural-events.

[68] Mike Tipping, *Data Breach Exposes Activities of Maine's Secretive Police Intelligence Agency*, *Beacon (Maine People's Alliance* (June 26, 2020), https://mainebeacon.com/data-breachexposes-activities-of-maines-secretive-police-intelligence-agency; Office of Intelligence and Analysis, "Open Source Intelligence Report (OSIR)," DHS (June 2, 2020), https://www.documentcloud.org/documents/20643306-maine-information-and-analysis-center-alert/; Nathan Bernard and Caleb Horton, *Teenager or Terrorist?*, Mainer, July 29, 2020, https://mainernews. com/teenager-or-terrorist.

[69] Jason Wilson, *Officials Baselessly Linked 'Antifa' to Arson Before Wildfires, Documents Show*, The Guardian (Sep. 19, 2020), https://www.theguardian.com/us-news/2020/sep/19/police-antifaarson-wildfire-conspiracy-theories.

to debunk them failed, misdirecting scarce law enforcement and emergency response resources during natural disasters.[70]

It is challenging for the public to ascertain fully the abuses of fusion centers, including TITAN, because their operations evade transparency. But because the operational model is similar across the network, we can extrapolate from these incidents—as well as TITAN's own—to conclude that these harms are likely to continue until TITAN is authorized, regulated, and effectively overseen.

CONCLUSION

Fusion centers like TITAN lack clear standards, a sensibly defined mandate, and meaningful rules for information sharing. With no oversight or regulations from the federal government or the network as a whole, it is up to the Oregon legislature to ensure authorization and guardrails exist to ensure TITAN—including its employees and participants from other state or local agencies—complies with Oregon law and protects the rights of Oregonians. But that has not happened. This vacuum undermines data integrity, public safety missions, the protections of rights and privacy, information security, and basic democratic transparency and accountability.

---

[70] Sam Levin, *How California Police Chased a Nonexistent 'Antifa Bus*,' The Guardian (Aug. 23, 2021), https://www.theguardian.com/us-news/2021/aug/23/revealed-california-police-antifamisinformation.

TITAN's operations are unauthorized. If the legislature, weighing its advantages and risks, decides that Oregon needs a fusion center, it should hold public hearings to discuss the costs and benefits of participating in the fusion center network, and the risks to privacy, civil liberties, and even security. Should the legislature determine through the democratic process that a fusion center is necessary, it should pass a bill explicitly authorizing one, establishing rules for its governance, and setting consequences for failing to meet clearly articulated standards.

Respectfully Submitted,

s/ Kelly Simon

_____

Kelly Simon, OSB No. 154213
ksimon@aclu-or.org
ACLU Foundation of Oregon, Inc.
PO Box 40585
Portland, OR 97240
(503) 227-3186

Colin Hunter, OSB No. 131161
Bradley Bernstein Sands LLP
1425 SW 20th Ave., Suite 201
Portland, OR 97201
(971) 337-0190
chunter@bradleybernstein.com

Attorneys for *Amici Curiae the American Civil Liberties Union of Oregon and Brennan Center for Justice at New York University School of Law*

CERTIFICATE OF COMPLIANCE

I certify that this brief complies with the word count limitation in ORAP 5.05(1)(b)(ii)(A) because the word count of this brief (as described in ORAP 5.05(1)(d)(i)) is 7,192 words.

I certify that the size of the type in this brief is not smaller than 14 point for both the text of the brief and footnotes as required in ORAP 5.05(4)(f).

Dated this 16th day of October, 2025.

s/ Kelly Simon

_____

Kelly Simon, OSB No. 154213
ksimon@aclu-or.org
ACLU Foundation of Oregon, Inc.
PO Box 40585
Portland, OR 97240
(503) 227-3186

CERTIFICATE OF FILING AND SERVICE

I certify that on October 16, 2025, I caused the original **BRIEF OF *AMICI CURIAE*** to be electronically filed with the State Court Administrator, Records Section, by using the Court's electronic filing system.

I further certify that, upon receipt of the confirmation email stating that the document has been accepted by the eFiling system, this **BRIEF OF *AMICI CURIAE*** will be eServed pursuant to ORAP 16.45 (regarding electronic service on registered eFilers) on the following counsel:

Tim Cunningham, OSB #100906 Davis Wright Tremaine LLP 560 SW 10th Ave, Suite 700 Portland, OR 97205 timcunningham@dwt.com Tel: (503) 241-2300 Barry Friedman, pro hac vice Aaron Scherzer, pro hac vice Carly Margolis, pro hac vice The Policing Project Washington Square Legal Services, Inc. 40 Washington Square South New York, NY 10012 barry.friedman@nyu.edu aaron.scherzer@nyu.edu carly.margolis@nyu.edu Tel: (212) 992-6950 Jeffrey Rosenthal, pro hac vice Patrick Swiber, pro hac vice Cleary Gottlieb Steen & Hamilton LLP One Liberty Plaza	Denise G. Fjordbeck, OSB #822578 Oregon Department of Justice 1162 Court St., NE Salem, OR 97301 denise.fjordbeck@doj.oregon.gov Tel: (503) 378-4402 *Attorney for Respondents* Marianne G. Dugan, OSB #932563 Civil Liberties Defense Center 1711 Willamette St, Ste 301 #359 Eugene, OR 97401 mdugan@cldc.org Tel: (541) 687-9180 *Attorney for Intervenors-Appellants Rogue Climate and 350 EUG*

New York, NY 10006 jrosenthal@cgsh.com pswiber@cgsh.com Tel: (212) 225-2000 *Attorneys for Appellants Farrell-Smith, Jackson, Westover and Eatherington*	

I further certify that a courtesy copy of this **BRIEF OF *AMICI CURIAE*** will be served on the above-listed counsel on October 16, 2025.

s/ Kelly Simon

_____

Kelly Simon, OSB No. 154213
ksimon@aclu-or.org
ACLU Foundation of Oregon, Inc.
PO Box 40585
Portland, OR 97240
(503) 227-3186